

(b) in paragraphs (a) and (c) (which provide that, in the case of a loan to any Government or authority constituted or established as aforesaid, references in subsection (2) or (3) of section one of the said Act of 1949 to the resources or, as the case may be, general revenues and assets of the colonial territory concerned shall be construed as references to the resources or, as the case may be, general revenues and assets of all or any of the colonial territories concerned), for the words "colonial territories" there shall be substituted the word "territories".

(3) The expression "colonial territory" in the said Acts of 1949 and 1952 shall include the New Hebrides.

2.—(1) This Act may be cited as the Colonial Loans Act, Citation. 1962.

(2) This Act and the Colonial Loans Acts, 1949 and 1952, may be cited together as the Colonial Loans Acts, 1949 to 1962.

CHAPTER 42

An Act to amend the law of Scotland relating to damages and solatium by extending the entitlement of parents to sue in respect of the death of a child, and to remove a doubt as to the title of a child to sue in respect of the death of his mother while his father is alive.

[19th July, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Notwithstanding any rule of law, it shall not be a bar to any right of a mother to recover damages or solatium in respect of the death of her child that the father of that child is alive.

Extension of title of mother or child to sue in respect of the death of the other.

(2) For the removal of doubt, it is hereby declared that it shall not be a bar to any right of a child to recover damages or solatium in respect of the death of his mother that the father of that child is alive.

2. The parent of an illegitimate child shall have the like right to recover damages or solatium in respect of the death of that child as if he were legitimate.

Title to sue in respect of illegitimate child.

3. Nothing in the provisions of this Act shall apply to a claim for damages or solatium in respect of the death of a person which occurred before its commencement.

Saving.

Short title
and extent.

4.—(1) This Act may be cited as the Law Reform (Damages and Solatium) (Scotland) Act, 1962.

(2) This Act shall apply to Scotland only.

CHAPTER 43

Carriage by Air (Supplementary Provisions) Act, 1962

ARRANGEMENT OF SECTIONS

Section

1. Supplementary Convention to have force of law.
2. Interpretation of Supplementary Convention.
3. Application of provisions of Acts of 1961 and 1932.
4. Interim protection for carriers' servants and agents.
5. Application to British possessions, etc., and to carriage by air not governed by Supplementary Convention.
6. Application to Crown.
7. Short title, commencement and saving.

SCHEDULE—Convention, supplementary to the Warsaw Convention, for the unification of certain rules relating to international carriage by air performed by a person other than the contracting carrier.

An Act to give effect to the Convention, supplementary to the Warsaw Convention, for the unification of certain rules relating to international carriage by air performed by a person other than the contracting carrier; and for connected purposes. [19th July, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Supplementary
Convention
to have force
of law.

1.—(1) The provisions of the Convention, supplementary to the Warsaw Convention, for the unification of certain rules relating to international carriage by air performed by a person other than the contracting carrier, as set out in the Schedule to this Act, shall, so far as they relate to the rights and liabilities of carriers, carriers' servants and agents, passengers, consignors, consignees, and other persons, and subject to the provisions of this Act, have the force of law in the United Kingdom in relation to any carriage by air to which the Convention applies, irrespective of the nationality of the aircraft performing that carriage.

(2) If there is any inconsistency between the text in English in Part I of the Schedule to this Act and the text in French in Part II of that Schedule, the text in French shall prevail.